

ease avoid tagging individuals or posting in slack that an agreement is 'Ready to Start' as the queue is continuously monitored.

1. The request may have additional review nodes, including 'Privacy', 'Security' and 'Buyer Negotiation', The Legal Procurement team has no control or approval authority within these additional nodes, as separate Team Members and SMEs own these review and approval nodes.

1. The requester should ensure all relevant documents are attached to the documents tab within the request, and any relevant information added as a comment within the request, otherwise, this may cause delay or issue with the timely processing of the request.

1. When the status is set to 'In Progress' by the Legal Procurement team member, the requester will know the request is under active review.

1. Redlines (amended review applied by the Legal Procurement team member) to the documents attached to the request (if applicable) will be attached and saved under the original version of the document(s) provided by the Legal Procurement team member in the Request.

1. Legal Procurement team members will notify the requestor through a tag and comment within the ZIP when (i) a review is completed or (ii) redlines are ready to be sent by the team member who created the request to the potential contracting party.

1. It is the responsibility of the team member who created the request to establish communications and relevant documents with the Legal Procurement team member and the potential contracting party.

1. Once agreeable terms are achieved, the Legal Procurement team member will attach a clean PDF version (named 'Executable' to start) with the GitLab Legal stamp of approval.

1. Once the 'Legal review' node is approved, the Legal Procurement team have no further actions and the request will continue through other approvals.

- Contact the Legal Procurement team member by tagging them directly in the GitLab Procurement Tool, the Legal Procurement Team member must be directly tagged in order to receive a notification on the request.

- Please avoid tagging the Legal Procurement team member in Slack unless an urgent matter arises, the team work on many high volume requests at any one time, and the GitLab Procurement Tool should be used as the single source of truth.

### Requesting a Certificate of Insurance

- To request a COI, please use your existing procurement request and tag the Legal Team member assigned (if applicable), or not active request exist, open an issue in the Legal and Compliance project using the general legal template. Be sure to apply the legal-procurement::to do label and tag @dcolesjr, @chilling32, and @ndjohnson in your request.

- For requests related to a customer or partner, open a Legal Request in SFDC.

### Helpful Resources

- Many Vendors require basic information about GitLab to be setup as a Customer, visit Company Information for general information about each GitLab legal entity

- GitLab's W9 can be found on the Finance Page

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## SECTION: legal/product.md

Marketing

- Visit the Marketing Guide: Collaborating with GitLab Legal, which covers amongst other things Promotional Games and Publicity Waiver and Release
- If the request is not addressed in the Marketing Guide, open a new General Legal Issue.
- For all materials requiring legal review, refer to the Materials Legal Review Process.

## Patents

- Visit the Patent page for information on GitLab's Patents and Patent Program, including how to participate.
- Visit the Guidelines for reviewing third-party patents (accessible to team members only).

## Trademark

- Visit Brand Resources and Trademark Guidelines for information about using GitLab's trademark.
- Use of Third-party Trademarks in GitLab
- Trademarks at GitLab

## Cleanroom development process

- Visit this guidance (accessible to team members only) for further information on the Cleanroom Development Process.

## Using open source software

The guidance for using open source software has been updated to enable team members to comprehensively determine which open source license types are pre-approved (deemed acceptable) for use, and which require prior review by the Legal & Corporate Affairs team (as their use may be unacceptable).

Team members wishing to use open source software should now refer to the comprehensive Blue Oak Council license list, and proceed, as follows:

- Pre-approved (Acceptable): Software associated with license types rated Gold, Silver, and Bronze and all licenses on the Exceptions list are pre-approved for use by the Legal & Corporate Affairs team.
  - Team members can proceed without seeking legal input.
- Approval required (Potentially Acceptable or Unacceptable): Aside from the Exception list, Software associated with a Lead rated license type or software associated with a license not included on the Blue Oak Council list requires review before use by the Legal & Corporate Affairs team.
  - Team members can request a review by opening a legal issue.
  - Include the details of how the software will be used, whether or not it will be modified, and how it will be distributed (if at all) in the issue description.
- Exception list (Acceptable):
  - WTFPL

Team members must ensure that we comply with all requirements and restrictions associated with the applicable license (these are typically defined in the body text of the license).

- For example, a common requirement is to include the original copyright and license notice in all copies of the distributed software
- Dependencies which are only used in development or test environments are exempt from open source license requirements as they're not distributed.

### Helpful resources

- GitLab Licensing and Compatibility.
- For general information, see: Google Open Source Program and Licenses
- For requests related to use of third-party software or other questions related to the use of open source licenses, open a legal issue and include any information relevant to the request.

### Contributor license agreements

If you're contributing to an open source project on behalf of GitLab, you may be required to enter into a CLA. In accordance with the Authorization Matrix Policy, legal approval is required to you enter into a CLA on behalf of GitLab.

If you have the choice between a Corporate and Individual CLAs, opt for the Corporate CLA.

Follow these steps to obtain legal approval and enter into a CLA on behalf of GitLab:

1. Check the Third-party CLA Tracker to verify whether there is already a CLA in place in respect of the project you want to contribute to.
1. If there's no CLA already in place listed in the Third-party CLA Tracker, open a new legal issue.
1. Apply the CLA label to the issue.
1. Include details of the project you are contributing to, and add the CLA for approval, either as an attachment or a hyperlink, to the issue.
1. Legal will review the CLA, requesting additional information where necessary, and approve.
1. If an email address and/or account is required to enter into the CLA, the clamanagers[at]gitlab.com email address should be used. Access to this Google Group can be requested and granted via the issue if required.
1. Once Legal have confirmed approval of the CLA in the issue, you can proceed to enter into the CLA (using the clamanagers[at]gitlab.com email if one is required) and begin contributing to the project.

Contributions to a third-party project on behalf of GitLab should be made using your @gitlab.com email address. Post any questions to the legal Slack channel.

Alternatively, if looking for information on contributing to GitLab see [here](#).

### Authorship Criteria

GitLab has established guidance to aid with determining authorship of academic papers developed at GitLab. This guidance is accessible to team members only [here](#)

### GPL Cooperation Commitment

The purpose behind this initiative is to ensure consistent and fair licensing enforcement for

breaches of certain licensing terms, in order to support the continued growth of the open source community. Further information on this initiative is available [here](#).

GitLab's GPL Cooperation Commitment follows:

- > Before filing or continuing to prosecute any legal proceeding or claim (other than a Defensive Action) arising from termination of a Covered License, GitLab commits to extend to the person or entity ("you") accused of violating the Covered License the following provisions regarding cure and reinstatement, taken from GPL version 3. As used here, the term 'this License' refers to the specific Covered License being enforced.
- >
- > However, if you cease all violation of this License, then your license from a particular copyright holder is reinstated (a) provisionally, unless and until the copyright holder explicitly and finally terminates your license, and (b) permanently, if the copyright holder fails to notify you of the violation by some reasonable means prior to 60 days after the cessation.
- >
- > Moreover, your license from a particular copyright holder is reinstated permanently if the copyright holder notifies you of the violation by some reasonable means, this is the first time you have received notice of violation of this License (for any work) from that copyright holder, and you cure the violation prior to 30 days after your receipt of the notice.
- >
- > GitLab intends this Commitment to be irrevocable, and binding and enforceable against GitLab and assignees of or successors to GitLab's copyrights.
- >
- > GitLab may modify this Commitment by publishing a new edition on this page or a successor location.
- >
- > Definitions
- >
- > 'Covered License' means the GNU General Public License, version 2 (GPLv2), the GNU Lesser General Public License, version 2.1 (LGPLv2.1), or the GNU Library General Public License, version 2 (LGPLv2), all as published by the Free Software Foundation.
- >
- > 'Defensive Action' means a legal proceeding or claim that GitLab brings against you in response to a prior proceeding or claim initiated by you or your affiliate.
- >
- > GitLab means GitLab Inc. and its affiliates and subsidiaries.

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## SECTION: legal/professional-services-agreement.md

(Additional Terms)

These Professional Services Terms ("Terms") are between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or, if a different GitLab Affiliate as listed as "GitLab" on an Order Form) ("GitLab"), and the entity accepting these Terms ("Customer"). These Terms are effective as of the earlier of Customer's acceptance of these Terms (i) within an Order Form or (b) via a SOW ("Effective Date"). Capitalized terms not otherwise defined herein

will have the meaning set forth in the Subscription Agreement (defined below).

## 1. DEFINITIONS

"Change Order" means any change to an SOW or Order Form, as applicable, as described in Section 2.3 below.

"Developments" means Improvements to GitLab's Pre-Existing Work, new technology, written materials, or other deliverables pursuant to these Terms, but excluding any Pre-Existing Work.

"Improvements" means all modifications and derivative works to Pre-Existing Works resulting from the Professional Services contemplated by these Terms.

"Order Form" as defined in the Agreement will be updated to include an ordering document which contains (i) the description of the Professional Services being purchased, from the (a) Professional Services Catalog, (b) Success Tiers Catalog, or (c) such other service catalogs as made available by GitLab from time to time, and the applicable Fees, payment terms, and other transaction details, sold on either a time and materials basis for specified rates, or for a fixed fee as applicable.

"Pre-Existing Work" means all rights, title and interest in and to a party's technology and Confidential Information, including all intellectual property rights imbued to a party as of the Effective Date of these Terms, or as applicable, the effective date of any SOW or Order Form.

"Professional Services" means GitLab services offerings which may include, without limitation, migration, implementation, configuration, consulting, dedicated engineering services, training services, or Success Tiers, as set forth in an applicable SOW or Order Form.

"Professional Services Catalog" means the predefined scope, level of effort and deliverables for certain Professional Services, as set forth in the corresponding service name found at <https://about.gitlab.com/professional-services/catalog/>.

"SOW" means a written statement of work executed by GitLab and Customer describing Professional Services to be provided pursuant to these Terms setting forth the time and materials-based objectives (unless otherwise stated as a fixed-fee) including, without limitation, project-specific activities and estimated level of effort. A SOW may be entered into, or incorporated within an Order Form, by and between Customer and GitLab, any GitLab Affiliate, or an Authorized Partner.

"Subscription Agreement" or "Agreement" means the GitLab subscription agreement available at <https://about.gitlab.com/terms/current-terms-of-use>, or such other written agreement between the parties governing Customer's use of Software.

"Success Tiers" means GitLab success offerings not otherwise provided as or with Software, Supplemental Services, or Professional Services, which may include, without limitation, enhanced technical support or awareness, adoption, usage, and performance offerings, purchased separately by Customer to improve its use of Software or Supplemental Services, as set forth in an applicable SOW or Order Form.

"Success Tiers Catalog" means the predefined scope, level of effort, and deliverables for certain Success Tiers, as set forth in the corresponding tier name found at <https://about.gitlab.com/services/>.

## 2. PROFESSIONAL SERVICES; PAYMENT OF FEES

1. These Terms, along with the Subscription Agreement, govern GitLab's provision of Professional Services to Customer. These Terms are incorporated into and form a part of the Subscription Agreement.

2. GitLab will provide to Customer the Professional Services for the Fees specified in an executed Order Form or SOW. For the avoidance of doubt, in the event Customer purchases Professional Services from an Authorized Partner: (i) GitLab's obligations to Customer with regard to any Professional Services hereunder will be limited to these Terms unless otherwise explicitly agreed to in writing between Customer and GitLab; and (ii) the provisions of Section 6 (Payment of Fees) of the Agreement will not apply as all terms of payment will be directly as between Customer and the Authorized Partner.

3. Fees for the Professional Services will be calculated on a time and materials or fixed fee basis, as set forth in a mutually agreed Order Form or SOW. In addition to the Fees, Customer will reimburse GitLab for Customer approved expenses reasonably incurred in the performance of Professional Services including meals, transportation, overnight accommodations, and any materials purchased for Customer's benefit (charged at cost) (collectively, "Expenses"), if applicable. GitLab will provide valid receipts and other reasonable documentation of such Expenses to Customer upon request and will invoice directly for any such Expenses in addition to the Fees. All Professional Services purchased are purchased separately from the Software and all references to "Order Form" or "SOW" herein will not apply in any way to any Software. GitLab will invoice Customer for Professional Services as rendered on a time and materials basis, unless provided under a fixed fee arrangement, in which case any fixed fee Professional Services, as applicable, will be paid up-front in full and will be non-cancellable.

4. Customer acknowledges that it may need to purchase additional Professional Services, or approve additional Expenses, if such Professional Services are not completed within any estimated time frames as presented within an Order Form or SOW. If this event occurs or if the parties desire to make changes to an Order Form or SOW during the engagement to address changes in scope or cost, the parties will complete and execute a Change Order. Upon the parties' mutual execution of a Change Order, it will be deemed incorporated by reference in the applicable SOW or in the absence of an SOW, within the Order Form.

5. GitLab may provide Professional Services through its third-party contractors. GitLab will remain responsible for such contractor's performance under these Terms or as otherwise agreed with Customer in writing.

## 3. CUSTOMER COOPERATION

1. Customer will cooperate with GitLab to facilitate the performance of the Professional Services, which will include, but not be limited, to the following: (i) assigning a project manager with the requisite skills and training to serve as Customer's primary point of contact; (ii) allocating sufficient resources to ensure Customer's ability to meet its obligations; (iii) establishing the overall project direction, including assigning and managing the

Customer's project personnel team; and (iv) providing GitLab with, or access to, such facilities (if applicable), equipment and support as are reasonably necessary for GitLab to provide Professional Services, including remote access to the hardware and systems software configuration on which GitLab supports use of the Software licensed by GitLab to Customer.

#### 4. TERM AND TERMINATION

1. These Terms commence on the Effective Date and continue until the Agreement is terminated in accordance with Section 4 of the Agreement or as otherwise set forth in these Terms. Subject to Section 4.3 of the Agreement, any termination of the Agreement, these Terms or any SOW, Order Form or Change Order will not entitle Customer to any credit or refund for amounts due and payable as of the date of termination. Notwithstanding the foregoing, either Party may terminate an SOW upon fifteen (15) days prior written notice, provided that Customer will remain responsible for all Fees due and owing for Professional Services delivered prior to the effective date of termination, and further provided, Customer will not be entitled to any credit or refund as the result of said termination. GitLab may (at its sole discretion) suspend delivering Professional Service if Customer breaches the terms of Section 2 (Professional Services; Payment of Fees) until such breach is remedied.

#### 5. PROPRIETARY RIGHTS

1. Each party will retain all rights, title and interest in their Pre-Existing Works. Except as explicitly set forth herein, each party reserves all intellectual property rights not expressly granted to the other party, and no right, title or interest in a party's Pre-Existing Works are transferred to the other party. Further, these Terms do not contemplate Professional Services for the provision of any Improvements to Customer's Pre-Existing Works, and any such deliverable will be subject to separate terms and conditions as to be mutually and explicitly identified and agreed between the parties in a fully executed SOW or other form of written agreement.

2. To the extent applicable, Customer hereby grants GitLab a non-transferable, non-exclusive, world-wide and royalty free license to use Customer's Pre-Existing Works necessary to provide the Professional Services under these Terms. To the extent GitLab Pre-Existing Works or Developments are incorporated into the Professional Services, such GitLab Pre-Existing Works and Developments are provided to Customer in a non-transferable, non-exclusive, world-wide and royalty free license to use solely for Customer's internal business purposes subject to the Agreement, and expressly conditioned on Customer's compliance with the terms of the Agreement. Notwithstanding the foregoing, Customer will own the portion of any deliverable(s) provided to Customer in tangible form consisting of written reports, analyses, architecture diagrams, project plans and similar working documents.

3. For the avoidance of doubt, GitLab is not restricted from developing, implementing, marketing or selling services or deliverables for other customers or projects that are similar to the Professional Services or deliverables provided under these Terms. Further, any Developments and/or Feedback Materials resulting from the provision of the Professional Services hereunder will be owned by GitLab and Customer will execute and deliver to GitLab any documents reasonably necessary to vest in GitLab all right, title and interest therein subject always to the terms of any applicable open source license.

4. Any use of Software by Customer will be governed by the Agreement. Customer agrees that its

purchase of Professional Services is not contingent on: (i) the delivery of any future Software functionality or features, other than any deliverables as set forth in the applicable SOW; or (ii) on any oral or written public comments by GitLab regarding future Software functionality or features.

## 6. LIMITED WARRANTY

1. GitLab represents and warrants that its provision of Professional Services under an SOW or Order Form will be rendered in a professional and workmanlike manner. If GitLab fails to meet the foregoing warranty, upon Customer's written notice, within ninety (90) days after completion of the applicable Professional Services, GitLab will, at its sole option and expense either: (i) re-perform and correct the nonconforming Professional Services within thirty (30) days; or (ii) provide a plan for correcting the nonconforming Professional Services within such thirty (30) day period. If the nonconforming Professional Services are not corrected, or if a reasonably acceptable plan for correcting them is not established during such period, Customer may terminate these Terms, or the respective SOW or Order Form, and receive a pro-rata refund for any pre-paid, unused portion of the Professional Services. The foregoing represents Customer's sole and exclusive remedy for a breach of this Section 6.1

2. The warranty in this Section 6 is void to the extent caused by Customer's: (i) alteration or modification of the Professional Services not otherwise directed by GitLab, or its authorized representatives, in writing; (ii) failure to meet: (a) the minimum system requirements as made available by GitLab including those set forth here:

<https://docs.gitlab.com/ee/install/requirements.html>; or (b) its obligations set forth in these Terms, or an Order Form or SOW, including, without limitation, those set forth in Section 3 (Customer Cooperation) above, to enable the provision of the Professional Services.

3. WARRANTY DISCLAIMER. SECTION 6.1 SETS FORTH GITLAB'S EXCLUSIVE WARRANTY WITH RE PROFESSIONAL SERVICES, AND IS IN LIEU OF ALL OTHER WARRANTIES. GITLAB DOES NOT MAKE WARRANTY OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, AND TO THE EXTENT PERMITTED BY APPLICABLE LAW, GITLAB SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES INCLUDING ANY WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR INFRINGEMENT.

## 7. MISCELLANEOUS

Capitalized terms used but not defined in these Terms will have the meaning in the Subscription Agreement. Except as provided in these Terms, the Subscription Agreement remains in full force and effect and governs Customer's access to and use of Software. To the extent of any conflict or inconsistency between these Terms and the Subscription Agreement, these Terms will control.

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## SECTION: legal/promotional-game-standard-rules.md

## GITLAB PROMOTIONAL GAMES - OFFICIAL RULES

1. NO PURCHASE OR PAYMENT IS NECESSARY TO ENTER OR WIN. Void where prohibited or restricted by law.



1. This Promotional Game is offered by GitLab, Inc. The words "you," "your," and "entrant" as used in these Official Rules refer to the natural person entering or participating in the Promotional Game.

1. HOW TO ENTER: Beginning on the Start Date/Time through the End Date/Time ("Promotion Period"), visit the Entry URL and follow the entry instructions and complete all required information. Only one entry per person and per household is permitted. Use of robotic, automatic, programmed, or similar entry methods will void all entries and result in disqualification. You may not enter multiple times by using different email addresses, identities or devices in an attempt to circumvent the Official Rules. The Sponsor's clock will be the official timekeeper for this Promotional Game.

1. ELIGIBILITY: Open only to residents within the Promotional Territory defined below, 18 years of age or older on the date of entry and meet the Eligibility Requirements for the Promotional Game. Employees of GitLab and its respective subsidiaries, affiliates, distributors, retailers and advertising and promotion agencies ("Promotional Game Entities"), and members of their family or persons living in the same household are ineligible to enter the Promotional Game or win a prize. Prizes will only be awarded and/or delivered to addresses within the Promotional Territory.

1. PROMOTIONAL TERRITORY: The Promotional Game is offered and available only to legal residents in the following countries: Australia, Canada, Ireland, Japan, Switzerland, the United Kingdom, and the United States of America.

1. DRAWING: A random drawing will take place on the Draw Date by the Sponsor from among all eligible entries received. The odds of winning depend on the number of entries received. Potential winner(s) will be notified by email at the email address provided in the entry and must sign and return any required Declaration of Eligibility and Release within 10 days of the date notice is sent. Failure to respond within the applicable time period will result in forfeiture of prize and Sponsor may award the prize to an alternate winner. The return of any prize notification or prize as undeliverable may result in disqualification and an alternate winner may be selected. All taxes resulting from acceptance of the prize are the sole responsibility of the winner. By entering the Promotional Game, Entrant accepts and agrees to these Official Rules and the decisions of the Sponsor, which shall be final in all matters. Acceptance of a prize also constitutes permission to the Sponsor to use the winner's name, likeness, and other information for marketing purposes without further compensation or right of approval, unless prohibited by law. All federal and state laws apply.

1. LIMITATION OF LIABILITY: By entering the Promotional Game, Entrants waive all right to, and hold the Sponsor and its designated agents harmless from, any claim, liability, loss, damage (including punitive, incidental, and consequential damages), or expense (including attorneys' fees) arising out of or in connection with participation in this Promotional Game or the acceptance, use or misuse of any prize. SOME JURISDICTIONS DO NOT ALLOW THE LIMITATIONS OR EXCLUSION OF LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE MAY APPLY TO EVERY ENTRANT. Sponsor assumes no responsibility for (a) late, incomplete, or incorrect entries; (b) an Entrant's failure to receive prize notices due to Entrant's spam, junk email, or other security settings or for Entrant's incorrect or otherwise non-functioning contact information; (c) technical hardware or software malfunctions, lost or unavailable network connections or failed, incorrect, inaccurate, incomplete, garbled, or delayed electronic communications whether caused by the sender or by any equipment or programming associated with

or used in the Promotional Game; (d) by human error which may occur in the processing of the entries in the Promotional Game; (e) or any typographical, technological, or other error in the publishing of the offer, administration of the Promotional Game, or announcement of the prize(s). If, in the Sponsors opinion, the Promotional Game is not capable of running as planned for reasons which may include without limitation, infection by computer virus, tampering, unauthorized intervention, fraud, technical failures, or any other causes which may corrupt or affect the administration, security, fairness, integrity or proper conduct of this Promotional Game, the Sponsor reserves the right at its sole discretion to cancel or modify the Promotional Game in whole or in part. In such an event, Sponsor shall immediately suspend all drawings and prize awards, and Sponsor reserves the right to award any remaining prizes in a manner deemed fair and equitable by Sponsor.

1. PRIZES: Prize(s) consist of only those items specifically listed in the Promotional Game description. Limit one prize per family or household. No substitution or transfer of prize is permitted by the winner. Sponsor reserves the right to substitute a prize of equal or greater value. Subject to the provisions of this paragraph addressing disqualification and alternate drawings, all prizes will be awarded. If a potential winner is disqualified for any reason, Sponsor will award the applicable prize to an alternate winner by random drawing from among the remaining eligible entries. Only two (2) alternate drawings will be held, after which the prize will remain unawarded. Sponsor makes no representation or warranty concerning the appearance, safety or performance of any prize awarded. Sponsor will not replace any lost or stolen prize items.

1. GOVERNING LAW AND FORUM: Entrant agrees that all matters arising out of or relating to the Promotional Game and these Official Rules are governed by, and construed in accordance with the laws of the United States, in the State of California, without respect to conflict of law doctrines. Entrant further agrees that any legal suit, action, or proceeding arising out of or relating to the Promotional Game and these Official Rules that cannot be resolved between the parties, shall be resolved individually, without resort to any form of class action, exclusively before a neutral one person arbitration panel which shall be located in San Francisco, California, having jurisdiction.

1. PRIVACY: Any personal data supplied by Entrant will be subject to the privacy policy of the Sponsor posted at [about.gitlab.com/privacy](https://about.gitlab.com/privacy). By entering the Promotional Game, Entrant grants Sponsor permission to share Entrant's email address and any other personal data with the other Promotional Game Entities for the purpose of administration and prize fulfillment, including use in a publicly available Winners list.

1. WINNERS LIST: for the names of all prize winners, send an email to [UXSweepstakes@gitlab.com](mailto:UXSweepstakes@gitlab.com) with the title of the Promotional Game in the subject line. The Winners list will be available 60 days after the Draw Date.

1. SPONSOR: GitLab, Inc., 268 Bush Street, Box 350, San Francisco, CA 94104. Sponsor is responsible for the collection, submission or processing of Entries and the overall administration of the Promotional Game. Entrants should contact Sponsor with any questions, comments or problems related to the Promotional Game. The Promotional Game may be offered or advertised through social media platforms. In such instances, the Promotional Game is in no way sponsored, endorsed, or administered by, or associated with Facebook, Instagram, Twitter, or LinkedIn, or other such social media platform. By entering this Promotional Game, you understand that you are providing your information to the Sponsor and not to Facebook,

Instagram or LinkedIn or other such social media platform and you agree to release and hold harmless the social media platform(s) from any and all claims related to your entry in the Promotional Game.

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## SECTION: legal/publiccompanyresources.md

Please note that all links are GitLab-internal only.

#### Trading Window Status

- GitLab Team Members can view the current trading window status via the Trading Window Status Issue.

#### Working with Corporate Legal

- For questions related to corporate matters, please review the content and materials within AnswerBase. The team will continue to update the Corporate Library.
- If the question a team member has is not answered within AnswerBase, please open an Issue pursuant to the RFP Process

#### Insider Trading Policy and Insider Trading Policy FAQ

- Insider Trading Policy
- Insider Trading Policy FAQ

#### Designated Insiders

- Designated Insider Pre-Clearance Process & FAQ
- Legal Office Hours: Designated Insider Agenda & Notes
- Designated Insider Slack Communication Note: This was the initial communication posted to designated-insiders
- Designated Insider: Pre-Clearance Form Demo

#### Policies & Guidelines

- Company Information - general information about each legal entity of the company
- Corporate Governance Guidelines - guidelines to assist the Board of Directors in the exercise of its governance responsibilities and serve as framework within which the Board of Directors may conduct its business

#### Corporate Resources

- Template: Year & Quarter End and Annual Meeting Calendar Note: This resource is shared with specific Team Members who participate in Quarter & Annual Filings
- Quarterly Open Window and Designated Insider Process Guide Note: This resource is shared with Corporate, Legal Operations, Finance and Stock Administration Team Members who participate in Quarterly Open Window processes

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## ## SECTION: legal/publicity-waiver-release.md

Is a Publicity Waiver and Release agreement required?

Subject to the exceptions listed below, a Release is required when:

- The name, image, likeness and appearance, voice, or professional biographical information (the "Likeness") of any team member, former team member, or non-team member is used in external materials such that the individual is identifiable.
- Photography or videography by or on behalf of GitLab will take place at an internal or external event, such as a conference.

A Release is not required when:

- Using a current team member's name, job title, or photo taken from the Meet Our Team page in external materials. This does not include the use of a former team member's photo taken from that page.
- Using screenshots of GitLab.com which include a team member's public GitLab profile information, including their name, GitLab username, and avatar.
- Streaming or publishing AMAs containing the Likeness of team members publicly to GitLab Unfiltered.

### Release templates

If a Release is required, the circumstances dictate which Release templates should be used:

- If you're organising an event at which photography or videography by or on behalf of GitLab will be captured, use the Event Photography and Videography Likeness Release.
- For all other circumstances, refer to the diagram below to determine which Release template to use.

mermaid

graph TD

A(Are the only individuals<br> featured in the materials<br> GitLab team members?)-->|Yes|B(Will the materials<br> be used for paid<br> outbound advertising?)

A -->|No| C(Use the General Waiver and Release Template)

B -->|No| D(Use the Team Member Waiver and Release Template)

B -->|Yes| C

click C "/handbook/legal/publicity-waiver-release/material-and-purpose-specific-publicity-waiver-and-release"

click D "/handbook/legal/publicity-waiver-release/team-member-general-publicity-waiver-and-release"

### Team Member Waiver and Release

For Team Members, if the materials will not be used in outbound advertising materials, use the

Team Member Waiver and Release. If the materials will be used in paid outbound advertising, use the General Waiver and Release instead.

Each team member need only sign the Team Member Waiver and Release once.

{{% details summary="Expand for instructions for DRIs using the Team Member General Publicity Waiver and Release" %}}

1. Search the GitLab Team Member Waiver and Release Tracker to determine whether a Release is already in place with the team members featured in the materials. If a Release is in place with all team members featured, no further action is required as the requisite Releases are already in place.

1. If no Release is in place, send the Team Member Waiver and Release form to all team members featured in the materials.

1. Team members featured in the materials review the Release and complete the form.

1. Once all team members featured in the materials have completed the form accepting the Release, verify this in the Tracker.

{{% /details %}}

### General Waiver and Release

For all non-Team Members, use the General Waiver and Release template. For Team Members, if the materials will be used in paid outbound advertising, use the General Waiver and Release Template.

{{% details summary="Expand for instructions for DRIs using the General Waiver and Release" %}}

1. If you don't have DocuSign access, open an Access Request to get it.

1. Once you have DocuSign access, access the General Waiver and Release template.

1. Click USE.

1. On the Recipients page:

- Under DRI, enter your name and GitLab email address;

- Under Signatory enter the name and email address of the individuals featured in the materials who needs to sign the Release; and

- Under Email Message, enter a message to the signatory explaining the purpose of the Release and asking them to sign it.

1. Click NEXT.

1. If you want to review the document before you send it, click the Preview button in the upper right corner.

1. Click SEND.

1. You will be notified by email when the Signatory has signed the Release.

1. Upload the signed Release to the relevant issue. If there's no issue, send a copy of the signed Release to [intellectualproperty@gitlab.com](mailto:intellectualproperty@gitlab.com).

1. Repeat this process for each individual appearing in the materials. If you need to obtain Releases for the same materials from 10 or more individuals, reach out to legal in Slack to discuss bulk sending.

{{% /details %}}

### Event Photography and Videography Likeness Release

When capturing photos or video at events, don't capture attendee name badges, or blur them where they appear.

For internal and external events at which photography or videography by or on behalf of GitLab will be captured, include the Event Photography and Videography Likeness Release Registration form language as a provision in the event registration terms and conditions, ensuring you have first completed the yellow-highlighted fields.

In addition, place Notice of Photography and Filming posters throughout the event space, or at the GitLab booth as appropriate, to notify attendees that photography and filming are taking place.

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## SECTION: legal/record-retention-policy.md

This Records Retention Policy promotes and assists with the implementation of procedures, best practices, and tools to promote consistent life cycle management of GitLab records. Because records contain important information, it is essential to take a systematic approach to the management of records.

## 1. Records Management

Records management addresses the life cycle of records, i.e., the period of time the records are in the possession of GitLab.

The life cycle usually consists of three stages: 1) Creation or receipt; 2) Maintenance or use; and 3) Destruction or retention. This policy is used in conjunction with the Records Retention and Disposal Standard.

Records retention does not mean permanent retention. There are certain situations where documents must be preserved permanently, but most records need only be retained for a specified period of time. When the retention period for a particular record expires, we should destroy or delete the record. However, if we destroy or delete a record before its retention period expires, GitLab may be subject to penalties and sanctions.

Unnecessary retention of records creates significant burdens for GitLab. For example, unnecessary records take up valuable storage space and make retrieval of needed records more difficult and costly. Consequently, GitLab recommends destruction of records after the retention period expires, except in those instances where GitLab directs otherwise (such as when a Litigation Hold is issued by the Legal Department). In other words, GitLab requires adherence to the records retention requirements and recommends the destruction of records according to the Retention Schedule.

## 2. The Difference between a "Record" and "Non-Record"

GitLab Records Retention Policy is based on a fundamental distinction between a "record" and a "non-record." GitLab Records Retention Schedule applies only to "records." Therefore, it is important to understand the difference between a "record" and a "non-record."

### 2.1 What is a "record"?

A "record" is a Document created or received by a GitLab entity or individual in the transaction of business that contains significant business value. It is maintained to memorialize GitLab's policies, procedures, functions, decisions, operations, processes or other business activities. The business value of a record is derived from the legal, regulatory, fiscal, operational, or informational significance of the content.

"Records" must be retained throughout their life cycle in accordance with GitLab Records Retention Schedule.

"Document" as used above is a piece of written, printed or electronic matter that provides information or evidence or otherwise serves as an official record and can include software application files, paper, slide presentations, spreadsheets, CAD drawings, electronic images, pictures, emails, faxes, and the like.

## 2.2 What is a "non-record"?

Simply stated, a "non-record" is everything that does not qualify as a "record." Non-records are materials that GitLab does not own, materials without substantive business value, or materials that have only temporary use as reference or reminders. They are not subject to GitLab Records Retention Schedule and should be discarded when no longer needed.

Examples of non-records include: Correspondence that is only needed for a short period of time and does not have substantive business value; Calendars; Informational items such as publications and extra copies of documents kept only for convenience or reference; personal or casual correspondence, Reminders and ticklers that are needed only for a short period of time and do not have substantive business value. This would include things like reminders, "post-it" notes or superseded drafts.

## 2.3 The difference between an original record and a copy

The original record represents GitLab's official version of any information asset. Original records may be created by a GitLab team member, received by GitLab from an outside source, or may be forms processed by a GitLab department.

A copy of a record is typically a duplicate that was created for dissemination or handy reference. There is no obligation to retain copies. Copies may be disposed of when they are no longer needed.

## 3. Responsibility for Developing and Managing Records

GitLab team members are responsible for making and keeping records of their work. In that regard, they have three basic obligations:

Create records needed to do the business of GitLab, record decisions on actions taken, and document activities for which they are responsible.

Maintain records in a legible and readily identifiable format.

Take care of records so that information can be found when needed. This means setting up adequate directories and files, and filing materials regularly and carefully in a manner that allows them to be safely stored and efficiently retrieved when necessary.

Carry out the destruction or retention of records under their control; This includes transferring records to storage or destruction of records in accordance with GitLab Records Retention Schedule and verifying records are destroyed in a manner conducive to prevent the

release of sensitive information into the public domain (i.e. erasing, shredding, etc.). The individual or department that maintains the official version of a record is responsible for managing the record. This is known as the Record Owner. The Record Owner is responsible for the use, retention, and destruction of that record, unless and until a record is officially transferred to a designated archive or storage center.

#### 4. Management of Electronic Records

The Record Owner ensures that electronically-generated records are identified, and the systems used to store the records comply with this Records Retention Policy and Records Retention Schedule. Records may be managed in either a paper format or an electronic format. Electronic recordkeeping systems must be designed to ensure the security and integrity of the records, preservation of records for the time when they are needed, and migration of data to other GitLab systems or subsequent systems. Consequently, GitLab records should not be maintained solely on the personal hard drive, flash drive, or directories of a GitLab team member assigned only for that person's use. GitLab team members should create an electronic filing system located in the appropriate server for their department or function, with specific folders for each team member and for each matter, and transfer their GitLab records to those folders, or at least copy them to those folders, as soon as possible after those records are created.

##### 4.1 Emails and Slack

Much of the business conducted today is done by email and Slack. GitLab has separate guidelines with regard the use of GitLab managed messages and attachments, which covers such things as communication etiquette, prohibited use and content of communications, password and encryption key security and integrity, GitLab's right to access information, confidential GitLab information, privileged communications and personal use of email. Email and Slack communications are subject to the same records retention procedures that apply to other documents and must be retained in accordance with GitLab Records Retention Schedule. The following guidelines apply to emails and Slack:

The status of any particular communication (i.e., whether it is a record and its retention period) is determined by its content, not the method of delivery.

The responsibility of maintaining and retaining an internally created and distributed document most often falls on the author, not the recipient.

GitLab team members who receive emails from outside GitLab are responsible for proper management of those communications. In an effort to be environmentally conscious, the printing of emails for record retention purposes is discouraged.

GitLab strongly discourages the storage of voluminous non-record email messages because of the limited value of such messages, and the cost and confusion associated with unmanaged retention and proliferation of email. Unmanaged retention of messages fills up storage space on the network servers, extends the amount of time to backup data, requires additional resources to maintain, slows performance, and can potentially lead to an inaccurate history of GitLab because it is haphazard and incomplete. As a general rule, team members are encouraged to promptly delete any non-record email messages they send or receive that no longer require action and are no longer necessary to GitLab's business. If a non-record email no longer has business value, it should be deleted.



## 4.2 Other Confidential Documents

GitLab employees are discouraged from printing or creating hard copies of confidential or proprietary documents or records. Hard copies of documents containing personal data, as defined in the Data Classification Index (internal only), is restricted, unless the creation of a hard copy record containing personal data is required for legal reasons, such as mailing information related to employment or benefits. If creating hard copies is unavoidable, employees must properly dispose of hard copy records in their home offices by shredding them and/or otherwise rendering the documents unusable or unreadable. Hard copies must never be printed to be kept for any long-term time period. If they are printed and kept for a short-term time period, they must be stored in a locked cabinet, drawer or other secure location until they are no longer needed, and can then be properly discarded, as described above.

## 5. Retention Period

The retention periods for specific types of records are set forth in GitLab Records Retention Schedule. The Records Retention Schedule will ensure that records are safely preserved until the retention period has expired. GitLab recommends that the records be destroyed in the normal course of business in accordance with the Records Retention Policy and Records Retention Schedule. In some instances, GitLab may choose to permanently preserve information for business or historical reasons. Such records are specifically designated in the Records Retention Schedule.

## 6. GitLab Records Retention Schedule

GitLab Records Retention and Disposal Standard establishes the retention periods for various types of records. It applies to all records, regardless of format. Retention of records according to the Records Retention and Disposal standard must be observed to ensure consistent application of reasonable due diligence in recordkeeping practices.

GitLab's Records Retention Policy promotes the destruction of records and other documents at the earliest possible time, in accordance with the following principles:

All records should be promptly destroyed pursuant to GitLab Records Retention Schedule. As discussed above, "non-record" materials are not subject to the Records Retention Schedule and should be discarded when no longer needed.

The retention periods in the Records Retention and Disposal Standard applies to the "original" version, or official record, of each information asset. Copies of records should be destroyed when they are no longer needed.

All record control processes will contain documented procedures clearly defining methods for identifying, storing, protecting and retrieving Records.

Identification methods should include a recommended destruction date and a mechanism for efficient retrieval of the information.

Storage will be in such a form as to preserve the integrity of the data and prevent eroding, tampering or altering the data.

Protection of the stored information will be in such a form as to ensure the integrity of the storage mechanism.

Retention will be, at a minimum, for the time period set forth in the Records Retention and Disposal Standard.

Records will be properly disposed of once the respective retention period has lapsed.

Disposal of the information will be in such a form as to protect the sensitive nature of the information therein and prevent release into the public domain.

Litigation Holds or other non-destruct directives issued by GitLab's Legal Department override any destruction authority granted by the Records Retention Schedule. In addition, destruction of non-record materials identified in the Litigation Hold is suspended.

When the decision is made to destroy GitLab information, it must be destroyed/erased in a secure and confidential manner that is appropriate to the sensitivity of the informational content.

Team members will consult the Data Classification and Handling Procedures for details on retention, destruction and storage of all Records.

## 7. Litigation Holds

GitLab is occasionally the subject of threatened or pending litigation or administrative proceedings. Such proceedings will suspend the normal operation of GitLab Records Retention Policy. Where appropriate, GitLab will issue a "Litigation Hold" to certain team members, departments or the entire GitLab organization. The Litigation Hold will provide a description of records and other documents that must be preserved. The failure to preserve records, documents and other evidence could subject GitLab to fines or sanctions. It is, therefore, very important to manage documents and other evidence in strict accordance with the Litigation Hold.

## 8. Special Situations

### 8.1 Mergers and acquisitions

Documents that may come into the possession of GitLab through the acquisition of another business entity, or through mergers or other agreements, are subject to GitLab Records Retention Policy. Such documents will be promptly screened and managed in accordance with the Policy directives.

### 8.2 Consolidations

In the event of consolidations, such as a facility closure, GitLab will continue to manage records associated with such facilities in accordance with GitLab Records Retention Policy. The following guidelines apply:

All records should be transferred to the new Record Owner, or as directed by GitLab. Legal Department must be informed of the identity of the new Record Owner and provided a description of the records transferred.

If a successor Record Owner is not identified, GitLab records will be transferred to the department or office most closely associated with the record's business function. For instance,

personnel files without new Record Owners must be forwarded to the People Operations Team. All other records must continue to be managed in accordance with GitLab Records Retention Policy. To ensure this, the Legal Department must be involved in all decisions concerning the destruction or transfer of such records.

### 8.3 Team Member Moves (Office Moves, Reassignments and Termination of Employment)

Team members are responsible for following GitLab's Record Retention Policy for ensuring that records are properly maintained. When team member's duties are being reassigned or the relationship with the team member is terminated, each team member should conduct an inventory of records and other materials in their possession and follow the steps listed below:

If the team member has any records that belong in department files, follow the procedures for ensuring that those records are properly stored in the appropriate location.

Dispose of non-record materials as soon as the team member no longer needs them.

Remove or destroy any personal materials. Team members are reminded that materials relating to their jobs cannot be removed without GitLab's permission.

Identify active records that are needed for current business and arrange for their transfer to the new Record Owner or as directed.

The manager of the former team member whose employment was terminated is responsible for compliance with the steps described above.

### 8.4 Contractual obligations

In some instances, GitLab may be required to maintain certain types of records or other types of information for designated periods of time pursuant to its contractual obligations with third parties. To the extent agreed to by GitLab, those contractual obligations must be honored. If there is a conflict between the Record Retention Schedule and a contract, the longer of the two terms shall prevail unless otherwise prevented by law.

## 9. Communications

GitLab Legal is responsible for implementing and managing the Records Retention Policy.

### Team Member Personnel File Retention Policy

This Policy sets out the approach GitLab takes to the maintenance, retention and destruction of team members' personnel files.

A personnel file is an official record containing employment-related personal information, held in the Company's human resources information systems and, where applicable, with third party vendors that provide employment verification and payroll support, and maintained according to the requirements of local law. GitLab maintains personnel files for all team members currently and for the specified time periods set out by law for team members formerly employed by GitLab entities. If you are employed by a PEO, your personnel file will be maintained by your particular hiring organization.

A non-exhaustive list of the records which a team member's personnel file might include is set out below:

A personnel file generally includes:

- hiring documentation and employment and performance records (offer letter, right to work and identification documents, records relating to performance, promotion and transfer, compensation, performance appraisals, awards or citations for excellent performance, warnings and any formal discipline, notes on attendance, and any contract or written agreement between you and GitLab);
- logs (including Growth & Development logs, Learning & Development logs, and signed acknowledgments);
- necessary medical or health and safety records, details of leaves and any payroll, pension or tax records (payslips, deductions, social security contributions, garnishments/attachments) (where required, these records are maintained separately from other personnel records);
- and,
- separation of employment documents (including resignation letters, termination, separation or severance agreements, correspondence and reference statements).

GitLab maintains, retains, and destroys personnel records in accordance with its Record Retention Policy and Records Retention and Disposal Standard. The retention period for personnel file records may vary and the criteria used to determine the required retention period will be based on an assessment of requirements under local laws, the purpose for which the record was created and stored and the basis on which the information is being processed.

GitLab's Records Retention Policy promotes the destruction of records and other documents at the earliest possible time and records will be properly disposed of once the respective retention period has lapsed. Disposal of the information will be in such a form as to protect the sensitive nature of the information therein and prevent release into the public domain.

GitLab is occasionally the subject of threatened or pending litigation or administrative proceedings. Such proceedings may suspend the normal operation of the GitLab Records Retention Policy. Where appropriate, GitLab will issue a Litigation Hold to certain team members, departments or the entire GitLab organization. The Litigation Hold will provide a description of records and other documents that must be preserved. The failure to preserve records, documents and other evidence could subject GitLab to fines or sanctions. It is therefore very important to manage documents and other evidence in strict accordance with the Litigation Hold. Note, that Litigation Holds or other non-destruct directives issued by GitLab's Legal Department will override any destruction authority. If you have any questions about a Litigation Hold, please reach out to the legal team at [legal@gitlab.com](mailto:legal@gitlab.com).

Team members can consult the Data Classification and Handling Procedures for details on retention, destruction and storage of all records.

Current and former team members may request a copy of their personnel file by submitting a request through this form. Additionally, team members can access and edit certain records at any time via Workday.

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## SECTION: legal/reseller-agreement.md

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Before submitting a Deal Registration, please review the Master Partner Agreement.

PLEASE READ THIS AGREEMENT CAREFULLY BEFORE ACCESSING GITLAB'S PARTNER PORTAL OR USING, ACCESSING, CONSUMING, PURCHASING, RESELLING OR OTHERWISE DISTRIBUTING THE SERVICES FROM GITLAB. BY CLICKING YOUR ASSENT BELOW OR USING, ACCESSING OR CONSUMING SOFTWARE OR SERVICES, YOU SIGNIFY YOUR ASSENT TO AND ACCEPTANCE OF THIS AGREEMENT. YOU ACKNOWLEDGE YOU HAVE READ AND UNDERSTAND THE TERMS. AN INDIVIDUAL ACTING ON BEHALF OF AN ENTITY REPRESENTS AND WARRANTS THAT HE OR SHE HAS THE AUTHORITY TO ENTER INTO THIS AGREEMENT ON BEHALF OF THAT ENTITY. IF YOU DO NOT ACCEPT THE TERMS OF THIS AGREEMENT, THEN YOU MUST NOT ACCESS, CONSUME, PURCHASE, RESELL OR OTHERWISE DISTRIBUTE THE GITLAB SOFTWARE OR SERVICES.

## Master Partner Agreement

This Master Partner Agreement (the "Agreement") is made as of the date in which the Partner accepts the terms of this Agreement by clicking "agree" or "accept" (the "Effective Date") by and between GitLab and Partner (referred to herein as "Party", or collectively as the "Parties") and authorizes Partner to participate in one (1) or more of GitLab's Partner Programs in the Territory (EMEA, North America, LATAM, or APAC) in the region aligning to the Partner's principal place of business address. Notwithstanding the foregoing, (i) the APAC Territory excludes China, Hong Kong, and Macau; and (ii) authorization to participate in GitLab's U.S. Public Sector Territory requires separate review and is excluded from the North America Territory, please contact a GitLab channel manager for further details.

In consideration of the mutual agreements contained herein and intending to be legally bound hereby, the Parties agree as follows:

### 1. DEFINITIONS

Capitalized terms used in this Agreement shall be defined where first used or as follows:

1.1 "Affiliate(s)" means any entity(ies) controlling, controlled by, and/or under common control with a Party hereto, where "control" means the ownership of more than 50% of the voting securities in such entity.

1.2 "Community Edition Software" means the publicly available, community-developed open-source software and components which may be provided with the Software. Community Edition Software is provided as Free Software (as defined herein)

1.3 "Confidential Information" means the terms and conditions of this Agreement, and any other non-public technical or business information of a Party, whether provided orally or in writing, that is designated in writing as "Confidential" or "Proprietary" at the time of disclosure or that due to the nature of the information the Receiving Party would reasonably understand it to be confidential information of the Disclosing Party, including information relating to a Party's techniques, ideas, concepts, algorithms, source code, methodologies, workflows, implementation processes, current and future products and services, research, engineering, designs, financial information, procurement requirements, customer lists, business forecasts, roadmaps, marketing plans, pricing, discounts and proposals. For the avoidance of doubt, Confidential Information shall not include electronic data and information submitted by or for End User to and/or through the Products and Services (referred to herein as "End User Data").

1.4 "Disclosing Party" means the Party disclosing its Confidential Information.

1.5 "End User" means Partner's customer and/or the ultimate user of the Products and Services.

1.6 "Exhibit(s)" means the addenda attached to this Agreement as selected on the Cover Page, which establishes the applicable Partnership type(s) and scope contemplated between the Parties. GitLab shall have no obligation(s), and Partner shall have no right(s), with respect to any Exhibit not otherwise selected above and executed between the Parties.

1.7 "Free Software" means Software provided by GitLab to an End User, Partner, or any other third party: (i) at no, or a greatly reduced, cost, and (ii) for the sole purpose(s) of evaluation, demonstration, piloting, testing, NFR (Not-For-Resale), and/or other elements non "commercial related". "Commercial related" shall include, but not be limited to, internal use, resale, and/or distribution of the Software.

1.8 "Order Form" means a transactional document agreed to between the Parties which states the Products and Services being purchased, term of use, price, and other applicable transaction details.

1.9 "Partner Portal" means GitLab Partner website located at <<https://partners.gitlab.com/>>, which contains relevant Partner Program information, documents, guidelines and terms.

1.10 "Partner Program" means the program guidelines and overview as provided by GitLab on the Partner Portal. The Partner Program may be modified by GitLab from time to time through updates posted to the Partner Portal, or as otherwise communicated by GitLab to Partner, as determined by GitLab in its sole discretion. Modifications to the Partner Program shall be considered accepted by Partner, upon thirty (30) days prior notice to Partner.

1.11 "Partnership(s)" means the established business relationship as agreed to between the Parties in an Exhibit or Exhibits.

1.12 "Products and Services" means GitLab's Software and Professional Services.

1.13 "Professional Services" means professional services, including but not limited to, training, enablement, best practices, and consulting which are provided by GitLab to an End User.

1.14 "Receiving Party" means the Party receiving the Confidential Information.

1.15 "Software" means software, and other branded offerings sold by GitLab as agreed to between the Parties in an Order Form, including but not limited to, the self-managed and/or SaaS version of GitLab's DevOps Lifecycle Application Platform.

1.16 "Terms and Conditions" means GitLab's standard terms and conditions applicable to the Products and Services, including GitLab's Subscription Agreement and Professional Services Agreement located at <<https://about.gitlab.com/terms>> as may be updated in GitLab's sole discretion from time to time.

1.17 "Trademarks" means a Party's corporate name, logo, and "button" or "icon" for use within third party software to indicate an available integration or partnership, and any other logos, slogan(s), service marks, trademarks, trade names and certification marks.

## 2. PARTNERSHIP

2.1 GitLab and Partner hereby establish the Partnership(s) described in one or more Exhibits as selected by the Parties in the Cover Page. Except as may be expressly set forth in an Exhibit, this Agreement and all Exhibits describe a non-exclusive relationship between the Parties and nothing in this Agreement or an Exhibit is meant to prevent either Party from dealing with any party or from distributing